SER-001 Request for Sheriff to Serve Court Papers

Instructions: Each county in California has a sheriff (and sometimes a marshal's office) that can serve different types of court papers, including restraining orders. Note that the sheriff cannot guarantee that they will be successful in finding the person you need served, but they will try to serve based on the information you put on this form.

- Complete this form for each set of papers you need served. You must complete a separate form for each person you need served.
- Find out where the person you need served is located. Give your papers to the sheriff or marshal's office in that county.
- You may have to pay for service of some court papers. For more information, see page 5 of this form, or go to selfhelp.courts.ca.gov/sheriff-serves.
- Do not use this form if you are asking the sheriff to enforce a wage garnishment order on an employer. Instead, use forms WG-001, *Application for Earnings Withholding Order*, and WG-035, *Confidential Statement of Judgment Debtor's Social Security Number*.
- If you want the sheriff to enforce a writ or levy, complete this form and form SER-001A, *Special Instructions for Writs and Levies—Attachment*.

CONFIDENTIAL

To Court Clerk: Do not file this form.

Sheriff File Number *(for sheriff to complete, if needed):*

Fill in case number:

Court Case Number:

All information is required unless it is listed as optional or does not apply to your case.

1 To the Sheriff or Marshal of *(name of county):* _____

2 Your Information

a. Your name *(party requesting service):* _____

b. Your lawyer's information *(if you have one)*
Name: _____
Firm name: _____

c. Court case name: _____
(example: Garcia v. Smith)

d. Contact information for the sheriff or marshal to reach you
(Give an address where you can receive mail regularly, like a post office box, a Safe at Home address, or another safe address. If you have a lawyer, give the lawyer's information.)
Address to receive mail: _____
City: _____ State: _____ Zip: _____
Telephone number *(optional):* _____ Email address *(optional):* _____

Court Case Number:

3 Information About Person or Entity You Want Served

(Check a or b)

a. ☐ I ask the sheriff to serve a person *(complete section below)*

(1) Name of person: _____
Nicknames or aliases *(optional):* _____

(2) Telephone number *(optional):* _____

(3) Can you describe the person?
☐ No, I do *not* have any information about the person's description.
☐ Yes *(complete the section below with any information you have):*
Gender: ☐ Male ☐ Female ☐ Nonbinary
Height: _____ Weight: _____ Hair color: _____ Eye color: _____
Date of birth or age *(give estimate, if unknown):* _____
Race/Ethnicity: _____
Special marks or features *(tattoos, scars, etc.):* _____
Vehicle *(type, model, year, color, plate number):* _____
☐ *Check here if you are including a picture of the person.*

(4) Do you know of any safety or accessibility issues?
☐ No
☐ Yes *(complete the section below with any information you have):*
The person *(check all that apply):*
☐ Has a gun or other weapon.
☐ Has a history of violence or abuse.
☐ Has special training *(examples: military, first responder).*
☐ Is deaf or hard of hearing.
☐ Does not speak English *(list language):* _____
☐ Is on probation or parole.
☐ Has an aggressive animal.
☐ Has mental health issues.
☐ Add any other information about safety or accessibility that you know about:
_____
_____

b. ☐ I ask the sheriff to serve an entity *(examples: business or government agency)*

(1) Name and type of entity: _____
Telephone number *(optional):* _____

(2) If there is a specific person who should be served, give name: _____

(3) If there is an agent for service of process, give name: _____

(4) List any safety or accessibility issues *(examples: weapons, aggressive animals, language barrier):*
_____

CONFIDENTIAL

This is not a court form. Do not file with the court.

Court Case Number:

4 Address Where Person or Entity Should Be Served

(The sheriff typically serves during normal business hours. Check with the sheriff's office for the exact times.)

Address: _____ ☐ Home ☐ Business

City: _____ State: _____ Zip: _____

Gate code or special instructions: _____

Best time to serve at this address *(example: 8 a.m.–noon):* _____

☐ *Check here if the person is in jail or prison (give name of facility):* _____

Alternate address *(optional)*

(If the person cannot be found at the address listed above, some sheriffs may try a second address if it's in the same county. If you have a second address for the person you want served, complete the section below.)

Address: _____ ☐ Home ☐ Business

City: _____ State: _____ Zip: _____

Gate code or special instructions: _____

Best time to serve at this address *(example: 8 a.m.–noon):* _____

5 Information About Your Request

a. What type of court papers are you giving the sheriff to serve *(examples: summons, restraining order, eviction, small claims, bank levy, or writ of attachment)?*

_____

b. List all forms or court papers you want served on the person in 3 a. *(optional).*
(Note: You can list each form by its form number (example: FL-100, SC-100). If there is no form number, give the title of the document. The court may have ordered you to serve certain papers. Look at the court's order and list all forms required. If you do not know which papers you need to serve, ask a lawyer, or contact your local self-help center for free information.)

_____
_____
_____
_____
_____
_____

c. Is there a court hearing (court date)?
- ☐ I don't know
- ☐ No
- ☐ Yes *(if yes, give date of hearing):* _____

CONFIDENTIAL

This is not a court form. Do not file with the court.

5 d. Is there a deadline for service?

- ☐ I don't know
- ☐ No
- ☐ Yes *(if yes, give deadline):* _____

e. Has the court allowed you to serve your court papers in another way besides personal service *(example: substituted service)?*

- ☐ I don't know
- ☐ No
- ☐ Yes *(if yes, include a copy of the order allowing another type of service)*

f. Is there any other information you want or need to give to the sheriff to serve your court papers?

- ☐ No
- ☐ Yes *(if yes, give information below):*

_____
_____
_____
_____
_____
_____
_____
_____

6 Enforcement of Writ or Levy

If you want the sheriff to enforce a writ or levy, you must complete form SER-001A, *Special Instructions for Writs and Levies—Attachment,* and turn it in with this form.

(Only complete this section if you want the sheriff to enforce a writ or levy.)

Do you want the sheriff to both serve your court papers and act as levying officer?

- ☐ Yes
- ☐ No. I only want the sheriff to act as levying officer. A registered process server has or will serve my papers.

Your Signature *(party asking for service, or their lawyer)*

Date: _____

_____ ▶ _____

Type or print your name | *Sign your name (may be electronic)*

CONFIDENTIAL

This is not a court form. Do not file with the court.

Your Next Steps

- Find out if you need to pay a fee for service by asking the court's self-help center, a lawyer, or the sheriff's office. Here are some situations where you **do not** need to pay for service:
  - If you have a fee waiver in your case (fee waiver granted by a judge on form FW-003 or FW-005).
  - If you are serving a domestic violence, elder abuse, or gun violence restraining order.
  - If you have a civil harassment, workplace violence, or school violence restraining order based on a credible threat of violence or stalking.

- Give this form and a copy of all the court papers you need served to the sheriff or marshal, including a copy of a fee waiver (if you have one). You can turn in your papers in person or send them electronically.

- You should get a form back from the sheriff.
  - If the sheriff was able to serve your court papers, you should receive a form (called a proof of service). **Make sure you get a copy from the sheriff and file it with the court**. Note that if there is a court stamp at the top right corner of the first page, it has already been filed and you do not need to file it with the court.
  - If the sheriff was unable to serve your court papers, you should receive a form (sometimes called declaration of due diligence) that tells you that service was unsuccessful and will give details about when the sheriff tried to serve the person. If the sheriff was unable to serve your papers, you can ask a lawyer or court's self-help center about your next steps.

- To find your local court self-help center, go to selfhelp.courts.ca.gov/. Self-help center staff will not act as your lawyer but may be able to give you information to help you decide what to do in your case. Services are free.

To Sheriff or Marshal

- This form is confidential and must not be made public.
- Any papers submitted with this form should be served and listed on the applicable proof of service form.
- Note that (5) b is optional and may help to identify documents that should have been submitted but were not received by your office.
- Under Government Code section 26666.2, once you've received a completed copy of this form and forms for service, you must attempt service unless:
  - Any order submitted does not have a judge's signature or other representation of a judge's signature; clerk's endorsement; or court stamp, seal, or other court endorsement; or
  - A court case number is not listed on the order, summons, or other notice.

CONFIDENTIAL

This is not a court form. Do not file with the court.

For your protection and privacy, please press the Clear button after you have printed the form.

FW-003 Order on Court Fee Waiver (Superior Court)

Clerk stamps date here when form is filed.

FILED
Superior Court of California
County of Alameda
06/03/2026
Chad Finke, Executive Officer / Clerk of the Court
By: _____ Deputy
Penelope Cabrera-Gamez

Fill in court name and street address:

Superior Court of California, County of Alameda

Rene C. Davidson Courthouse
Administration Building, 1221 Oak S
Oakland CA 94612

Fill in case number and name:

Case Number:
26CV191136

Case Name:
NEWANFORBI vs CALIFORNIA HIGHWAY PATF

1 Person who asked the court to waive court fees:

Name: Brendan Ngehsi Newanforbi

Street or mailing address: 1455 Cat Tail Drive

City: Stockton State: CA Zip: 95204

2 Lawyer, if person in 1 has one *(name, firm name, address, phone number, e-mail, and State Bar number):*

3 A request to waive court fees was filed on *(date):* 05/29/2026

☐ The court made a previous fee waiver order in this case on *(date):*

Read this form carefully. All checked boxes ☑ are court orders.

Notice: The court may order you to answer questions about your finances and later order you to pay back the waived fees. If this happens and you do not pay, the court can make you pay the fees and also charge you collection fees. If there is a change in your financial circumstances during this case that increases your ability to pay fees and costs, you must notify the trial court within five days. (Use form FW-010.) If you win your case, the trial court may order the other side to pay the fees. If you settle your civil case for **$10,000** or more, the trial court will have a lien on the settlement in the amount of the waived fees. The trial court may not dismiss the case until the lien is paid.

4 After reviewing your: ☑ *Request to Waive Court Fees* ☐ *Request to Waive Additional Court Fees* **the court makes the following orders:**

a. ☑ The court **grant**s your request, as follows:

(1) ☑ **Fee Waiver.** The court grants your request and waives your court fees and costs listed below. *(Cal. Rules of Court, rules 3.55 and 8.818.)* You do not have to pay the court fees for the following:

- Filing papers in superior court
- Making copies and certifying copies
- Sheriff's fee to give notice
- Court fee for phone hearing
- Giving notice and certificates
- Sending papers to another court department
- Reporter's fee for attendance at hearing or trial, if the court is not electronically recording the proceeding and you request that the court provide an official reporter
- Assessment for court investigations under Probate Code section 1513, 1826, or 1851
- Preparing, certifying, copying, and sending the clerk's transcript on appeal
- Holding in trust the deposit for a reporter's transcript on appeal under rule 8.130 or 8.834
- Making a transcript or copy of an official electronic recording under rule 8.835

(2) ☐ **Additional Fee Waiver.** The court grants your request and waives your additional superior court fees and costs that are checked below. *(Cal. Rules of Court, rule 3.56.)* You do not have to pay for the checked items.

☐ Jury fees and expenses
☐ Fees for court-appointed experts
☐ Other *(specify):* _____
☐ Fees for a peace officer to testify in court
☐ Court-appointed interpreter fees for a witness

b. ☐ The court **denies** your fee waiver request because:

Warning! If you miss the deadline below, the court cannot process your request for hearing or the court papers you filed with your original request. If the papers were a notice of appeal, the appeal may be dismissed.

(1) Your request is incomplete. You have **10 days** after the clerk gives notice of this Order (see date of service ☐ on next page) to:

- Pay your fees and costs, or
- File a new revised request that includes the incomplete items listed:
  ☐ Below ☐ On Attachment 4b(1)

(2) ☐ The information you provided on the request shows that you are not eligible for the fee waiver you requested for the reasons stated: ☐ Below ☐ On Attachment 4b(2)

The court has enclosed a blank *Request for Hearing About Court Fee Waiver Order (Superior Court)* (form FW-006).You have **10 days** after the clerk gives notice of this order (see date of service below) to:

- Pay your fees and costs in full or the amount listed in c below, or
- Ask for a hearing in order to show the court more information. *(Use form FW-006 to request hearing.)*

c. (1) ☐ The court needs more information to decide whether to grant your request. You must go to court on the date on page 3. The hearing will be about the questions regarding your eligibility that are stated:
☐ Below ☐ On Attachment 4c(1)

(2) ☐ Bring the items of proof to support your request, if reasonably available, that are listed:
☐ Below ☐ On Attachment 4c(2)

This is a Court Order.

Your name: Brendan Ngehsi Newanforbi

Case Number: 26CV191136

Name and address of court if different from above:

Hearing Date → Date: _____ Time: _____

Dept.: _____ Room: _____

Warning! If item c(1) is checked, and you do not go to court on your hearing date, the judge will deny your request to waive court fees, and you will have 10 days to pay your fees. If you miss that deadline, the court cannot process the court papers you filed with your request. If the papers were a notice of appeal, the appeal may be dismissed.

Date: 6/3/2026

Signature of (check one): ☑ *Judicial Officer* ☐ *Clerk, Deputy*

Jenna Whitman / Judge

Request for Accommodations

Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

Clerk's Certificate of Service

I certify that I am not involved in this case and *(check one):*

☐ I handed a copy of this Order to the party and attorney, if any, listed in (1) and (2), at the court, on the date below.

☑ This order was mailed first class, postage paid, to the party and attorney, if any, at the addresses listed in (1) and (2), from *(city):* Oakland, California, on the date below.

☑ A certificate of mailing is attached.

Date: 06/03/2026

Chad Finke, Executive Officer / Clerk of the Court

Clerk, by _____, Deputy

Name: Penelope Cabrera-Gamez

This is a Court Order.

CLERK'S CERTIFICATE OF ELECTRONIC SERVICE ON FEE WAIVER ORDER

I certify that I am not a party to this cause and that the document: FW-003 - Order on Court Fee Waiver (Superior Court), has been transmitted electronically by the Alameda County Superior Court from Oakland, CA to the electronic service provider that submitted the transaction. The transmission originated from the Alameda County Superior Court on 06/03/2026 at 10:45:39 AM PDT. The electronically transmitted document(s) is in accordance with Rule 2.251 of the California Rules of Court. The list of electronically served recipient(s) are listed below:

Party: Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI
Petitioner In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the CHP Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the CHP Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the CHP Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	Case No. 26CV191136 **PETITIONER'S OPPOSITION TO INDIVIDUAL RESPONDENTS' DEMURRERS AND JOINDERS TO RESPONDENT CHP'S DEMURRER;** **MEMORANDUM OF POINTS AND AUTHORITIES** Date: August 28, 2026 Time: 9:00 a.m. Assigned for All Purposes to: Hon. Jenna M. Whitman, Dept. 25 Action Filed: May 29, 2026 Trial Date: Not set

NOTICE OF OPPOSITION

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that Petitioner Brendan Ngehsi Newanforbi, appearing in propria persona, hereby opposes the Demurrers and Joinders filed by individual Respondents Gerardo Serrato, Gary Paul, and Eric Dutra on July 30, 2026. This opposition is based on this notice, the accompanying Memorandum of Points and Authorities, the Verified Petition for Writ of Mandate and all exhibits incorporated therein, the files and records in this action, and any

further evidence and argument the Court may receive at or before the hearing.

Hearing Date: August 28, 2026, 9:00 a.m., Department 25, Superior Court of California, County of Alameda, 1221 Oak Street, Oakland, CA 94612.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

On July 30, 2026, individual Respondents Gerardo Serrato (Captain/Commander), Gary Paul (Lieutenant), and Eric Dutra (Sergeant) each filed a Notice of Joinder to Respondent California Highway Patrol's Demurrer, a separate Demurrer, and a supporting Memorandum of Points and Authorities. Each filing does two things. First, each individual Respondent joins and adopts CHP's core theory that certifying Form I-918, Supplement B is a discretionary act beyond the reach of ordinary mandamus under Code of Civil Procedure § 1085. Second, Respondents Paul and Dutra each raise an individualized argument not previously briefed: that the Petition fails to plead facts showing each of them personally qualifies as a "certifying official" within the meaning of Penal Code § 679.10(b), and that each is therefore not a proper respondent. Respondent Serrato's MPA does not independently challenge his certifying-official status but rather acknowledges that Petitioner has alleged he is a certifying official and has attached the denial letter he signed. (Serrato MPA at 2:20-24.)

As to the joinder-based arguments, Petitioner incorporates by reference in full the arguments and authorities set forth in Petitioner's Opposition to Respondent CHP's Demurrer, filed July 13, 2026, and the supporting Declaration of Petitioner. Those arguments apply with equal force to the individual Respondents, who merely adopt CHP's positions without independent analysis. Petitioner will not rebrief those arguments here.

As to the "not a certifying official" argument raised by Respondents Paul and Dutra, it is independently meritless. As a threshold matter, the Petition does not merely support an inference on this point — Pet. ¶¶ 14–16 each expressly allege, in the statute's own words, that the respondent "is a 'certifying official' within the meaning of Penal Code § 679.10(b)." That allegation must be accepted as true on demurrer, together with the specific supporting facts and attached exhibits discussed below. Independent of that express allegation, the Petition also pleads specific supporting facts — including two exhibits attached to and incorporated by reference in the Petition itself — from which the Court can and must reasonably infer that each individual Respondent is a certifying official under one or more of the four categories in § 679.10(b). The Petition is not required to recite the statutory categories verbatim; it is required to plead facts, which it does, and it does so twice over. If the Court nonetheless finds any allegation insufficient, leave to amend should be granted because the deficiency, if any, is a readily curable pleading gap, not a substantive defect.

II. STANDARD OF REVIEW

A demurrer tests whether the complaint states facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) In ruling on a demurrer, the court must "assume the truth of all facts properly pleaded by the plaintiff, as well as those that are judicially noticeable." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court "give[s] the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Ibid.) A complaint need not plead facts in the precise language of the statute; it suffices if the facts alleged support a reasonable inference that each element of the claim is met. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39 ["[w]e look to whether the factual allegations, liberally construed, state a cause of action on any available legal theory"].)

"[A] demurrer should not be sustained without leave to amend if the complaint, liberally construed, can reasonably be considered to state a cause of action on any theory, or if there is a

reasonable possibility that the defect can be cured by amendment." (Quelimane Co., supra, 19 Cal.4th at p. 38, citing Blank v. Kirwan, supra, 39 Cal.3d at p. 318.) The burden is on the demurring party to show that the complaint does not state facts sufficient to constitute a cause of action. (Ibid.)

On demurrer, the Court may also consider matters subject to judicial notice (Evid. Code, § 452) and documents incorporated by reference in the pleading. (*Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505 ["a demurrer reaches exhibits attached to or incorporated by reference in the complaint"].) The Verified Petition incorporates fourteen exhibits, including the April 20, 2026 denial letter (Exhibit 1), the dashcam transcript (Exhibit 5), the CHP arrest report (Exhibit 6), and the Penal Code § 851.6 detention certificate (Exhibit 7). These are part of the pleading and accepted as true on demurrer.

III. ARGUMENT

Penal Code § 679.10(b) defines "certifying official" as: (1) the head of the certifying entity; (2) a person in a supervisory role who has been specifically designated by the head of the certifying entity to issue Form I-918 Supplement B certifications on behalf of that agency; (3) a judge; or (4) any other certifying official defined under § 214.14(a)(2) of Title 8 of the Code of Federal Regulations. (Pen. Code, § 679.10, subd. (b)(1)-(4).)

The question on demurrer is not whether the Petition recites these categories verbatim. It is whether the Petition alleges facts from which the Court can reasonably infer that each individual Respondent falls within one or more of these categories. (Quelimane Co., supra, 19 Cal.4th at pp. 38-39.) Here, the Petition does more than support an inference: Pet. ¶¶ 14, 15, and 16 each expressly allege that the respondent "is a 'certifying official' within the meaning of Penal Code § 679.10(b)" — using the statute's own operative phrase. As shown below, the Petition also independently pleads the specific supporting facts for each Respondent, backed by exhibits

attached to and incorporated by reference in the Petition itself.

A. Respondent Serrato Is a Certifying Official Under § 679.10(b)(1) and/or (b)(2)

Respondent Serrato's challenge to the Petition is the weakest of the three — so weak that Serrato's own MPA does not even raise it. Unlike Respondents Paul and Dutra, whose MPAs each contain a section demurring "for one additional reason" (that the Petition does not adequately allege certifying-official status), Serrato's MPA contains no such section. Instead, it acknowledges that "Petitioner alleges that Capt. Serrato is a 'certifying official' within the meaning of Penal Code section 679.10(b) and has attached to his petition the certification denial letter signed by Capt. Serrato." (Serrato MPA at 2:20-24.) The Court should overrule Serrato's demurrer on this ground alone: the argument was not raised and is therefore waived.

Even if the argument were before the Court, it would fail on the merits. Pet. ¶ 14 alleges that Serrato, as Captain and Commander of the CHP Dublin Area, "authored, signed, and issued the April 20, 2026 denial letter on CHP Dublin Area letterhead under his name and title," "exercises supervisory and final decisional authority over certifications processed out of the Dublin Area office," and — in the statute's own words — "is a 'certifying official' within the meaning of Penal Code section 679.10(b)." (Pet., ¶ 14.) The denial letter itself, attached to the Petition as Exhibit 1, bears Serrato's signature and title.

These facts establish certifying-official status under multiple subsections of § 679.10(b). As the area-level Commander exercising "final decisional authority" over certifications, Serrato is the functional head of the certifying entity at the operational unit level, satisfying subdivision (b)(1). At minimum, he is a person in a supervisory role who exercises certification authority on behalf of CHP, satisfying subdivision (b)(2). And Serrato's actual conduct — personally signing a certification denial under his name and title — is itself the strongest possible evidence that he

holds the statutory role. A respondent who has exercised the very authority the Petition seeks to compel cannot credibly claim he lacks that authority.

Respondents' own proposed order further confirms Serrato's status. The proposed order seeks to sustain the demurrers on the ground that certification is discretionary, not ministerial — a merits argument that presupposes Serrato is the official exercising the discretion in question. Respondents cannot simultaneously argue that Serrato exercised certification discretion and that he is not a certifying official.

B. Respondent Paul Is a Certifying Official Under § 679.10(b)(2)

As a threshold matter, Pet. ¶ 15 does not stop at the facts Respondent Paul quotes in his MPA — it goes on to expressly allege, in the statute's own words, that Paul "is a 'certifying official' within the meaning of Penal Code section 679.10(b)." That allegation, standing alone, must be accepted as true on demurrer. Respondent Paul's MPA does not address it, quoting only the sentence that precedes it.

Respondent Paul argues that the Petition alleges only that he "is a CHP supervisory official with responsibility for processing the certification request" (Pet., ¶ 15) and that this does not satisfy any of the four categories in § 679.10(b). (Paul MPA at 2:24-3:5.) This argument ignores the full scope of the allegations and misapplies the demurrer standard.

The Petition alleges far more than a bare label. Pet. ¶ 15 alleges that Paul "is the official who acknowledged receipt of Petitioner's April 9, 2026 certification request by return e-mail on April 10, 2026, and who is identified in the April 20, 2026 denial letter as the contact point for 'any additional questions.'" These are specific factual allegations — not conclusions — establishing that Paul personally received, processed, and was the designated point of contact for

the certification request. Combined with the allegation that Paul is "a CHP supervisory official" (Lieutenant), these facts support the reasonable inference that Paul was specifically designated by CHP to process Form I-918, Supplement B certifications, satisfying § 679.10(b)(2).

The April 10, 2026 email from Lt. Paul — attached to the Petition as Exhibit 13 and incorporated by reference, and referenced at Pet. ¶ 15 — confirms this inference. In that email, Paul acknowledged receipt of the certification request and represented that he would ensure Petitioner was notified "by written correspondence." This is not the conduct of an uninvolved bystander; it is the conduct of an official who has been designated to process certifications and who is performing the function the statute assigns to a certifying official. On demurrer, the Court must draw this reasonable inference in Petitioner's favor, and it need not draw any inference at all as to the email's authenticity or contents: Exhibit 13 is part of the pleading itself. (Blank v. Kirwan, supra, 39 Cal.3d at p. 318; Barnett v. Fireman's Fund Ins. Co., supra, 90 Cal.App.4th at p. 505.)

Paul's argument also proves too much. If a CHP lieutenant who personally receives a certification request, acknowledges it, processes it, and is identified in the denial letter as the contact person is not a "certifying official," then the statute's inclusion of designated supervisory officials in subdivision (b)(2) is rendered a nullity. The Court should reject any construction that makes statutory language surplusage. (*People v. Pieters* (1991) 52 Cal.3d 894, 919 [courts should give effect to every word of a statute].)

C. Respondent Dutra Is a Certifying Official Under § 679.10(b)(2) or, Alternatively, (b)(4)

As a threshold matter, Pet. ¶ 16 does not stop at the facts Respondent Dutra quotes in his MPA — it goes on to expressly allege, in the statute's own words, that Dutra "is a 'certifying official' within the meaning of Penal Code section 679.10(b)." That allegation, standing alone,

must be accepted as true on demurrer. Respondent Dutra's MPA does not address it, quoting only the sentence that precedes it.

Respondent Dutra argues that the Petition alleges only that he is "the assigned investigator and designated recipient on the Supplement B" (Pet., ¶ 16) and that this does not satisfy any of the four statutory categories. (Dutra MPA at 2:25-3:5.) This argument fails for several reasons.

First, the Petition alleges that Dutra is "the investigator assigned to CHP Citizen Complaint File No. 390.18437.17620 by the March 26, 2026 correspondence of Respondent Serrato" and is "the official to whom Petitioner submitted the formal certification request on April 9, 2026." (Pet., ¶ 16.) These allegations establish that Dutra was formally designated by Captain Serrato — a command-level officer — to handle the investigation and receive the Supplement B submission. The March 26, 2026 Complaint Assignment Letter documenting this formal assignment is attached to the Petition as Exhibit 11 and incorporated by reference — it is part of the pleading itself, not extrinsic evidence. (Barnett v. Fireman's Fund Ins. Co., supra, 90 Cal.App.4th at p. 505.)

This formal designation by a command-level supervisor satisfies § 679.10(b)(2), which covers "a person in a supervisory role who has been specifically designated by the head of the certifying entity to issue Form I-918 Supplement B certifications on behalf of that agency." Dutra was specifically designated by the area commander to handle the complaint file and receive the Supplement B; he was the official to whom Petitioner submitted the form. On demurrer, these facts support the reasonable inference that Dutra's assignment encompassed the processing of the certification request. (Blank v. Kirwan, supra, 39 Cal.3d at p. 318.)

Second, the Petition's characterization of Dutra as the "designated recipient on the Supplement B" is itself significant. The word "designated" — drawn from the Petition's factual narrative, not from a bare statutory label — mirrors the operative language of subdivision (b)(2)

("specifically designated"). A respondent who is the "designated recipient" of the very form at issue in this litigation occupies precisely the role the statute contemplates.

Third, alternatively, Dutra may qualify under subdivision (b)(4) as a "certifying official defined under Section 214.14(a)(2) of Title 8 of the Code of Federal Regulations," which broadly defines certifying officials to include law enforcement officers who have responsibility for the investigation of qualifying criminal activity. Dutra was assigned as the investigator on the underlying complaint file and was the point of submission for the Supplement B. These facts support a reasonable inference under (b)(4) as well.

IV. IN THE ALTERNATIVE, LEAVE TO AMEND SHOULD BE GRANTED

If the Court finds the current allegations insufficient as to any individual Respondent, Petitioner respectfully requests leave to amend the Petition to add: (a) express cross-references to Exhibit 11 (the March 26, 2026 Complaint Assignment Letter) and Exhibit 13 (the April 10, 2026 email from Lt. Paul) within the body of Pet. ¶¶ 15–16; and (b) any additional facts regarding CHP's internal designation procedures for Form I-918, Supplement B certifications. Petitioner notes that Exhibits 11 and 13 themselves are already attached to and incorporated by reference in the Petition (see Section III, supra); any amendment on this point would be limited to adding clarifying cross-references within the body paragraphs, not to introducing new material into the record.

A demurrer should not be sustained without leave to amend unless "there is no reasonable possibility that the defect can be cured by amendment." (Blank v. Kirwan, supra, 39 Cal.3d at p. 318.) Here, the purported deficiency is not that the individual Respondents are not certifying officials — they are, as the record shows, including by their own express allegations at Pet. ¶¶ 14–16 and the exhibits already attached at Exhibits 11 and 13 — but, at most, that the body paragraphs do not separately cite those exhibits by number. That is, at most, a cosmetic

cross-referencing gap, not a substantive defect, and amendment to add express exhibit citations and any additional designation facts would cure it. Leave to amend should be liberally granted, particularly to a self-represented litigant. (*Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158, 1162 [leave to amend "is routinely and liberally granted"].)

V. CONCLUSION

For the foregoing reasons, and for the reasons set forth in Petitioner's July 13, 2026 Opposition to Respondent CHP's Demurrer (incorporated herein by reference), Petitioner respectfully requests that the Court:

1. Overrule the demurrers of individual Respondents Serrato, Paul, and Dutra in their entirety; or

2. In the alternative, if the Court finds any allegation insufficient as to any individual Respondent, sustain the demurrer with leave to amend; and

3. Deny Respondents' request that the demurrers be sustained without leave to amend.

Dated: July 31, 2026



BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

PROOF OF SERVICE

I, Brendan Ngehsi Newanforbi, declare:

I am the Petitioner in the above-captioned action, appearing in propria persona. I am over the age of eighteen and a resident of San Joaquin County, California. My mailing address is 1455 Cat Tail Drive, Stockton, California 95204, and my electronic service address is bnn.cdl@gmail.com.

On July 31, 2026, I served true and correct copies of the following document:

1. PETITIONER'S OPPOSITION TO INDIVIDUAL RESPONDENTS' DEMURRERS AND JOINDERS TO RESPONDENT CHP'S DEMURRER; MEMORANDUM OF POINTS AND AUTHORITIES

on the following party by transmitting a true copy via electronic mail, addressed as follows:

Vanessa Ing, Deputy Attorney General, Office of the Attorney General, 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. E-mail: Vanessa.Ing@doj.ca.gov. Attorneys for Respondents California Highway Patrol, Gerardo Serrato, Gary Paul, and Eric Dutra.

In addition, on July 31, 2026, I submitted a true copy of the same document, together with a Request for Sheriff to Serve Court Documents (Judicial Council Form SER-001) directing service by mail on the party and address above, to the Civil Section of the Alameda County Sheriff's Office, 1225 Fallon Street, #104, Oakland, California 94612, for that office to execute service by mail at no charge pursuant to Government Code section 26721 and the fee waiver

granted to Petitioner in this action.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 31, 2026,

at Stockton, California.



BRENDAN NGEHSI NEWANFORBI